



Tort Law (9th edn)

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p. 56 3. Duty of care: Basic principles

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Abstract

This chapter begins by tracing the development of the duty of care starting with the case of *Donoghue v Stevenson* [1932]. It goes on to consider the various general tests developed and used by the courts in order to establish when a duty of care is owed.

Keywords: tort law, duty of care, *Donoghue v Stevenson*, *Caparo Industries v Dickman*, *Robinson v Chief Constable of West Yorkshire Police*

3.1 Introduction

Consider the following examples:

- *A lorry driver crashes into a queue of traffic while talking on his mobile phone, killing the occupants of the car in front.*
- *A nurse misreads a doctor's handwriting and, as a result, gives a patient the wrong drug, causing them to suffer a serious allergic reaction.*
- *A university law lecturer fails to check departmental files properly before writing a reference to accompany a student's application to join an Inn of Court—unfortunately this means that a strong candidate ends up with a weak reference and their application is refused.*
- *A school caretaker injures their back falling off a stepladder while putting up decorations for the end of term play—the stepladder had not been properly maintained by their employer.*

In each of these cases the defendant owes the claimant a duty of care. The concept of the duty of care is central to the tort of negligence. It is one of three elements in the tort of negligence—the first ‘hurdle’ if you like—that must be established in order for a claim to be successful. Carelessness alone does not give rise to liability. The defendant must not only be careless but also in a relationship to the claimant where their carelessness carries legal consequences. If the defendant does not owe a duty of care to the claimant, then the defendant will not be liable regardless of how carelessly they acted and how much loss they caused to the claimant. In such cases, there is no need to address the other elements of a negligence claim—that is breach, causation and remoteness. Moreover, the duty of care must be owed *in respect of the particular type of harm (or injury) suffered*—a defendant may owe the claimant a duty of care in respect of one type of loss (e.g. bodily injury) but not in respect of another (e.g. economic loss).

It is usually clear when a duty of care is owed. We know, for example, that an employer owes their employees a duty of care not to cause them foreseeable physical and psychiatric injury at work; that a driver owes a similar duty to other road users, and others in their vicinity; and that a doctor owes a duty to their patients (in both treating and, increasingly, advising them). In these, and many other cases, a duty of care is established by clear precedent: the courts have long recognised duties of care in these situations. Accordingly, in a road traffic accident case the key issue is not likely to be whether the defendant owed the claimant a duty
p. 57 of care, but rather whether they have breached this duty by falling below the standard of care expected in all the circumstances of the case.¹

On occasion, however, cases arise where the question of whether a duty of care exists is not answered by precedent. In these ‘novel’ cases, the question for the court is whether the law *should* recognise a duty of care on such facts. To answer this question, the courts have made numerous attempts to identify a general ‘test’ which can be used to identify when duties of care will arise. However, as we shall see, none of these attempts have been altogether successful.

Nonetheless, this uncertainty about what general test or approach courts should take when faced with novel cases does not mean that there is significant uncertainty about when duties of care arise. Most cases are not novel but are covered by precedent. Accordingly, when considering whether a duty of care is owed, the starting point is *always* to look to existing precedent. If the cases give a clear answer one way or the other—that is, if they indicate that a duty is or is not owed—then that is the end of the matter. It is only in those rare, but nonetheless significant, cases where the precedents give no clear answer that the courts need to resort to a more general test or approach.

One thing which follows from what we have said already is that there is no universal duty to take care not to harm or injure each other. The law does not *always* require us to show reasonable care for those who may be harmed—however foreseeably—by our conduct. Indeed, the duty of care concept is seen by many as a sort of control device, which the courts employ to *limit* the scope of negligence liability. As Peter Cane and James Goudkamp note:

[W]hereas Lord Atkin seems to have put forward the neighbour principle as a way of *expanding* the scope of liability for negligence, the duty of care concept is most commonly used in modern cases as a means of justifying *refusal* to impose liability. (emphasis added)²

There are a number of situations where the law either denies a duty of care outright or makes establishing such a duty more onerous for claimants.³ These relate to particular types of harm (e.g. where the defendant's actions cause psychiatric injury or economic loss), how the harm is suffered (e.g. where the claimant's loss or injury has been caused by the acts of a third party or through an omission rather than a positive act) and who the defendant is (e.g. where the defendant is a public body—such as a local authority, the police or other emergency services). This, of course, prompts a further question as to why the courts might wish to deny a duty of care in such cases.

There are a number of reasons why the courts might be reluctant to impose a duty of care. These include a wish to avoid imposing so-called 'crushing' liability on a particular individual or class of defendants—that is, 'liability in an indeterminate amount for an indeterminate time to an indeterminate class' (*Ultramares Corporation v Touche, Niven & Co* [1931]). A related wish may also be to prevent a 'flood' of claims—either in relation to one specific event or, more generally, in relation to a particular type of injury—which may in turn clog up or slow down the tort system as a mechanism for compensation. The courts may also wish to seek to avoid the more negative aspects of deterrence—that is, the danger of 'overkill'—whereby beneficial yet 'risky' activities are restricted due to the over-self-regulation of would-be defendants. Finally, the courts may recognise that in some circumstances there is nothing wrong with the sort of harm the defendant has caused—that is, that it is sometimes entirely reasonable to act in ways that leave others worse off.⁴ For example, failing a student's exam paper will inevitably leave them worse off both in terms of their future employment prospects as well as their current mental state. However, the examiner (assuming the paper is not of a sufficient standard to pass) is under no duty to prevent this from happening by not failing the student.⁵

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Pause for reflection

There are differing views as to the role of the duty of care.

Peter Cane and James Goudkamp argue that the main function of the duty of care element in the tort of negligence is to:

define the boundaries of liability for damage caused by negligent conduct by reference to what are commonly called 'policy considerations' ... To say that a person owes a duty of care means (and means only) that the person will be liable for causing damage by negligence in that situation.⁶

Nicholas McBride disagrees. He argues that tort law's regulatory function—that is, the extent to which tort law tells people how they *ought* to behave—is *at least as* important. On this view, it is wrong to say the imposition of a duty of care 'means only' that the defendant will be liable for carelessly harming the claimant. Rather we should take the notion of a duty of care—and its requirement and direction that a defendant act with reasonable care—seriously.⁷

This distinction, described by McBride as that between those who adopt a ‘cynical’ as opposed to ‘idealist’ view of the tort of negligence, is an important one. On one view tort law is about attributing or shifting losses, and hence the key question is: Do we want to impose liability in these circumstances, on this defendant, for this injury? On this basis the purpose of the duty of care inquiry is simply to weigh up the pros and cons of requiring the defendant to bear the claimant’s losses. By contrast, the idealist view suggests that tort law is concerned primarily with telling people how they may and may not act. So, to impose a duty of care on a defendant is not simply to say that they will be liable if they carelessly injure someone, but that they must actually ‘take care’.

Keep this distinction in mind as you read more about the tort of negligence and, particularly, when reading **Chapters 4 to 7**, which deal with the types of claim in which the courts have struggled with whether and when to find a duty of care. To what extent, if any, can the distinction between the ‘cynical’ and ‘idealist’ views on negligence provide an explanation for some of the courts’ more controversial decisions in relation to establishing a duty of care?

3.2 Establishing a duty of care

As noted in **section 3.1**, there has been some uncertainty about what general test or approach courts should take when faced with so-called novel cases, which is to say those rare, but important, cases in which there is no existing precedent on whether a duty of care arises. In such cases, the court needs to determine whether a duty of care should be recognised. Over the years the courts have adopted various approaches. Given that to a large extent these build on and respond to each other it is worth looking at these in turn.

3.2.1 From *Donoghue* to *Anns*

The starting point in any consideration of the concept of a duty of care is *Donoghue v Stevenson* [1932]. As discussed in **Chapter 2**, *Donoghue* is now understood as setting down a single, general test which could be applied in all cases to answer the question as to whether a duty was owed in the form of Lord Atkin’s ‘neighbour principle’:

You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who then, in law, is my neighbour? The answer seems to be persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question. (at 580)

The basic test here is that, for a duty of care to arise, the claimant must fall within a class of individuals put at *foreseeable risk* by the defendant’s action. It follows that duties of care are claimant-specific: the defendant does not owe a duty of care to the world at large. An example of this point is *Haley v London Electricity Board* [1965]. In this case, the claimant, who was blind, tripped over a hammer which had been placed on the

pavement by the defendant to prevent pedestrians from walking along the pavement as they carried out their work. As a result of the fall the claimant became almost totally deaf. The defendants argued that it was not in their 'reasonable contemplation' that a blind person would be walking along the pavement. The House of Lords disagreed. Finding for the claimant, it held that the question of whether harm was reasonably foreseeable needed to factor in the characteristics of all those who might reasonably be expected to walk along the pavement—including blind pedestrians:

In deciding what is reasonably foreseeable one must have regard to common knowledge ... No doubt there are many places open to the public where for one reason or another one would be surprised to see a blind person walking alone, but a city pavement is not one of them. (Lord Reid at 791)

For some, Lord Atkin's neighbourhood principle is 'extraordinarily empty'.⁸ It simply prompts the question: what is, or ought to be, reasonably foreseeable? This is something which may ultimately depend on the imagination of the individual judge; what one judge may believe to be reasonably foreseeable, another may consider unusual and so on. Yet this requirement that harm be reasonably foreseeable before a duty of care is recognised has been the one constant in a period where much of the law of negligence has been in flux. And,

p. 60 ↪ while determining what harms are *reasonably* foreseeable is a question on which different people will sometimes come to different conclusions, the law cannot sensibly expect us to take care in respect of risks we could not reasonably have anticipated.

Pause for reflection

One constant in the quest for a general test for establishing duties of care is the requirement of **foreseeability**—that is, the claimant must be said to fall into a particular class of people in relation to whom it is reasonably foreseeable that the defendant's failure to take care could cause them damage. However, as we shall see, foreseeability also crops up as a requirement or relevant factor in other elements of the tort of negligence.

To recap, establishing a claim in negligence requires the claimant to prove not just that the defendant owed them a duty of care, but also that the defendant breached that duty, that the breach caused the claimant a loss and that this loss is not too remote. When we come to look at breach, in **Chapter 8**, we shall see that one of the key factors in determining whether the defendant did indeed act reasonably is the likelihood and gravity of the harm that could reasonably have been foreseen—so, for instance, the greater the likelihood of harm, the more care we expect the defendant to take to prevent it (*Overseas Tankship (UK) Ltd v Miller Steamship Co Pty Ltd (The Wagon Mound) (No 2)* [1967]). Moreover, when determining whether the loss suffered by the claimant is too remote, we again turn to reasonable foreseeability—a loss is too remote if it was not reasonably foreseeable that a loss of that kind might follow from the defendant's breach (*Overseas Tankship (UK) Ltd v Morts Dock and Engineering Co (The Wagon Mound) (No 1)* [1961]).⁹

This all appears rather confusing. If the claimant's loss was not reasonably foreseeable, then no duty of care can arise and their claim will fail before we get to questions of breach, causation and remoteness. By contrast, if a court has held that harm was reasonably foreseeable when looking at whether a duty arose, then it seems unnecessary to re-inquire into foreseeability when looking at breach and remoteness since that issue has already been addressed at the duty stage. To put much the same point another way, if it is held that the claimant's loss was *not* a reasonably foreseeable consequence of the defendant's carelessness, then it seems we can deny their claim on a variety of grounds: we could say that no duty was owed, that the defendant was not in breach or that the claimant's loss was too remote.

So, not only does it seem as though we are asking the same question two or three times but this also appears to muddy the relationship between the supposedly distinct elements of a negligence claim. The same point has on occasion been made by the courts. For instance in *Lamb v Camden London Borough Council* [1981] Lord Denning MR had this to say:

The truth is that all these three, duty, remoteness and causation, are all devices by which the courts limit the range of liability for negligence ... As I have said ... 'it is not every consequence of a wrongful act which is the subject of compensation'. The law has to draw a line somewhere. Sometimes it is done by limiting the range of persons to whom a duty is owed. Sometimes it is done by saying that there is a break in the chain of causation.

↪ At other times it is done by saying that the consequence is too remote to be a head of damage. All these devices are useful in their way. But ultimately it is a question of policy for the judges to decide. (at 636)

The best way to make sense of this all is to understand that at each stage—duty, breach, remoteness—we are, or should be, asking a slightly different question in relation to foreseeability. So, at the duty stage, we are asking whether harm of some broad variety—personal injury, psychiatric harm, property damage, pure economic loss, etc—was a reasonably foreseeable consequence of the defendant's carelessness. If a duty is established, we move on to breach. This involves asking whether the foreseeable harm was sufficiently grave or likely that the defendant should have done more than they did to avoid it happening. As such, the inquiry into foreseeability here is a little more detailed or focused—we are asking not only 'Was harm foreseeable?' but 'How likely was it that harm might be caused?' and 'How serious was the harm that the defendant could reasonably have foreseen?' Finally, when addressing remoteness, we are looking at the foreseeability of the specific harms that the claimant did in fact suffer. So, while at the duty stage we ask whether, for instance, physical harm, as broadly defined, was foreseeable, when turning to remoteness we look at the precise injury suffered by the claimant (and sometimes, too, the way in which they were injured), and we ask whether this was the *type* of physical harm that could reasonably have been foreseen (see e.g. *Tremain v Pike* [1969] and *Hughes v Lord Advocate* [1963], although compare *Page v Smith* [1996]).

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Lord Atkin's neighbourhood principle from *Donoghue* was subsequently restated and refined in the dictum of Lord Wilberforce in *Anns v Merton London Borough Council* [1978]:

... the question has to be approached in two stages. First one has to ask whether, as between the alleged wrongdoer and the person who has suffered damage there is a sufficient relationship of proximity or neighbourhood such that, in the reasonable contemplation of the former, carelessness on his part may be likely to cause damage to the latter, in which case a prima facie duty of care arises. Secondly, if the first question is answered affirmatively, it is necessary to consider whether there are any considerations which ought to negative, or to reduce or limit the scope of the duty or the class of person to whom it is owed or the damages to which a breach of it may give rise. (at 751–2)

So, on this reformulation of the test, the defendant owes the claimant a duty to take reasonable care (provided that it was *reasonably foreseeable* that a failure to take reasonable care by the defendant would cause damage to the claimant) *unless* there is some policy reason why, nonetheless, no duty should be held to be owed. This prompted Lord Goff in *Smith v Littlewoods* [1987] to acknowledge 'the broad general principle of liability for foreseeable damage is so widely applicable that the function of the duty of care is not so much to identify cases where liability is imposed as to identify those where it is not' (at 280).

p. 62 Under the *Anns* test, the only positive reason needed to support the recognition of a duty of care was that harm to the claimant was indeed reasonably foreseeable. This first stage was pretty easy to satisfy—almost everything is foreseeable if you think about it long enough. Now, the second stage meant that courts were not compelled to find duties of care simply on account of the harm being reasonably foreseeable. However, the way the test was formulated → created a sort of presumption that, *if* harm was reasonably foreseeable, then a duty of care was owed. As such, a defendant seeking to argue that he owed no duty faced an uphill battle, since they had to convince the court why they, exceptionally, should be permitted to cause careless harm.

The end result was an unprecedented, and increasingly unpopular, expansion of the tort of negligence in the late 1970s and early 1980s during which the courts seemed reluctant to refuse claims of any vaguely sympathetic claimant who came before them (see e.g. Lord Roskill's opinion in *Junior Books v Veitchi* [1983]). Accordingly, Lord Wilberforce's two-stage test soon fell into disfavour. It was rejected in *Yuen Kun-yeu v Attorney General of Hong Kong* [1987] and *Anns* itself was subsequently overruled by *Murphy v Brentwood District Council* [1991].¹⁰

Counterpoint

Though many modern accounts of negligence fail to acknowledge this, the decision in *Anns* was not universally derided. Indeed, in *Ravenscroft v Rederiaktiebolaget Transatlantic* [1991] (decided after *Anns* was overruled in *Murphy*) Ward J had this to say:

As I have tried to navigate my fragile craft to judgment, I have become aware that it is a tidal sea which flows as causes of action are extended and then ebbs as limitations are placed upon them. I can only console myself that if I am cast up among the flotsam and jetsam at the high water mark on the beach, I shall lie, I hope unnoticed but among such battered treasures as *Anns v Merton London Borough Council*. (at 76)

Moreover, it is far from clear that the test in *Anns* necessitated any expansion of liability. It may be that it was a victim of association—a casualty of the backlash against an increasing number of decisions (e.g. *McLoughlin v O'Brian* [1982]; *Home Office v Dorset Yacht Co* [1970]; even the decision in *Anns* itself) which appeared to threaten the principles of individual freedom and responsibility at a time when these were high on the political and governmental agenda.¹¹

What do you think led the courts to the conclusion that the potential for liability had become too widespread? Think, in particular, about the so-called 'problematic' duty situations in relation to omissions, pure economic loss, public authorities, psychiatric harm and so on.

Check our **pointers** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-3-pointers-to-pause-for-reflection-and-counterpoint-boxes?options=showName>> on how to answer the questions posed in this 'Pause for reflection'.

3.2.2 *Caparo Industries v Dickman*

In *Caparo Industries plc v Dickman* [1990]¹² the House of Lords sought to move away from the position of *Donoghue* and *Anns* whereby foreseeability of damage was enough to raise a prima facie duty of care, which would be negated only if there were public policy considerations which militated against such a duty. But, more than that, the court cast doubt on the broader idea which motivated Lord Atkin's judgment in *Donoghue*: that there must be some general test which can determine when duties of care are owed.

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↪ The more difficult question was this: once the tests in *Donoghue* and *Anns* were rejected what was to be put in their place? An attempt to answer this question was given by Lord Bridge who suggested:

... in addition to the foreseeability of damage, necessary ingredients in any situation giving rise to a duty of care are that there should exist between the party owing the duty and the party to whom it is owed a relationship characterised by the law as one of 'proximity' or 'neighbourhood' and that the situation should be one in which the court considers it fair, just and reasonable that the law should impose a duty of a given scope on the one party for the benefit of the other. (at 617)

Later courts, wrongly, came to treat this passage as setting down a new ‘three-stage test’ which must be applied to determine whether a duty of care arises. On this understanding, to know whether the defendant owes the claimant a duty of care we need to answer three questions: (1) Was it reasonably foreseeable that the defendant’s failure to take care could cause damage to the claimant? (2) Was there a relationship of proximity between the claimant and the defendant? And (3) Is it fair, just and reasonable that the law should recognise a duty on the defendant to take reasonable care not to cause that damage to the claimant? Only if the answer to all three questions is ‘yes’ would a duty of care be found.

While the first asks the familiar question of whether the claimant fell within a class of individuals put at *foreseeable risk* by the defendant’s action, the second and third questions marked a departure from the *Anns* test. Though the language of ‘proximity’ was used in *Anns* and indeed in *Donoghue*, it appears that Lord Wilberforce, and (less clearly) Lord Atkin, did not intend the term to add anything to the notion of reasonable foreseeability. In other words, to say that there was ‘proximity’ between the claimant and defendant was to say no more than that it was reasonably foreseeable that the defendant’s carelessness could cause the claimant harm. As such, ‘proximity’ did not describe an additional hurdle or requirement to the requirement of reasonable foreseeability. *Caparo* changed this. By employing ‘proximity’ as a second, additional, element to the test for establishing the existence of a duty of care, the House of Lords was understood as having meant something *more than* simple reasonable foreseeability of harm. But, initially, *Caparo* itself tells us very little about what precise relationship or connection amounts to a relationship of proximity on any given set of facts. Rather ‘proximity’, in Lord Oliver’s words, is a ‘convenient expression so long as it is realised that it is no more than a label which embraces not a definable concept but merely a description of circumstances from which, pragmatically, the courts conclude that a duty of care exists’ (at 632). The difficulty lies then—in the absence of a single or definable idea or test through which to establish proximity—in identifying what this alternative understanding of proximity is and hence how to determine when it is present.

Clearly proximity does not describe simple physical closeness—a defendant can owe a duty of care to a claimant who is many miles away (indeed in *Donoghue* itself the claimant and defendant were not close in space or time). Rather proximity is perhaps better understood, to use Alistair Mullis and Ken Oliphant’s expression, as a ‘legal term of art’;¹³ a generic name for the more specific tests through which the existence of a duty of care is established in particular cases.¹⁴ Similarly, in *Stovin v Wise* [1996] Lord Nicholls stated:

[The *Caparo*] formulation tends to suggest that proximity is a separate ingredient, distinct from fairness and reasonableness, and capable of being identified by some other criteria. This is not so. Proximity is a slippery word. Proximity is not legal shorthand for a concept with its own, objectively identifiable characteristics. Proximity is convenient shorthand for a relationship between two parties which makes it fair and reasonable one should owe the other a duty of care. This is only another way of saying that when assessing the requirements of fairness and reasonableness regard must be had to the relationship of the parties. (at 932)

On this view the proximity requirement simply tells us that, before a duty of care can arise, a certain type of relationship or connection must exist between the parties. *Donoghue* and *Anns* both suggested that the only connection or relationship that needed to exist between the parties was that it was reasonably foreseeable

that the claimant might be harmed by the defendant's carelessness. However, *Caparo* tells us that this is not true (since otherwise this second stage of the *Caparo* 'test' would add nothing to the first) and that something more is needed. However, it does not say what this 'something more' is.

The final stage of the *Caparo* 'test'—that is, whether it is *fair, just and reasonable* to find that the defendant owed the claimant a duty to take reasonable care not to cause them damage—returns, once again, to notions of policy. It has been argued that this leaves the courts with an inevitable 'residual discretion as to whether or not a duty of care should be recognised'.¹⁵ Traditionally, judges have sought to play down this aspect of their role (especially during the period of retreat following *Anns*). However, more recently, they have been more willing to engage in frank discussion of the various policy factors which weigh for and against the imposition of a duty of care. Indeed, in *Michael v Chief Constable of South Wales Police* [2015] Lord Kerr (in dissent) appeared to suggest not only that a decision whether or not to impose a duty of care was necessarily informed by 'preponderant policy considerations' but that these might change over time:

As to what is 'fair, just and reasonable', Lord Browne-Wilkinson in *Barrett v Enfield London Borough Council* [2001] 2 AC 550, explained:

In English law the decision as to whether it is fair, just and reasonable to impose a liability in negligence on a particular class of would-be defendants depends on weighing in the balance the total detriment to the public interest in all cases from holding such class liable in negligence as against the total loss to all would-be plaintiffs if they are not to have a cause of action in respect of the loss they have individually suffered. (at 559)

This passage clearly contemplates that, in deciding what is 'fair, just and reasonable', courts are called on to make judgments that are informed by what they consider to be preponderant policy considerations. Some assessment has to be made of what a judge considers the public interest to be; what detriment would be caused to that interest if liability were held to exist; and what harm would be done to claimants if they are denied a remedy for the loss that they have suffered. These calculations are not conducted according to fixed principle. They will frequently, if not indeed usually, be made without empirical evidence. For the most part, they will be instinctual reactions to any given set of circumstances. ...

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☞ It is, I believe, important to be alive to the true nature of these decisions, especially when one comes to consider the precedent value of earlier cases in which such judgments have been made. A decision based on what is considered to be correct legal principle cannot be lightly set aside in subsequent cases where the same legal principle is in play. By contrast, a decision which is not the product of, in the words of Lord Oliver, 'any logical process of analogical deduction' holds less sway, particularly if it does not accord with what the subsequent decision-maker considers to be the correct instinctive reaction to contemporaneous standards and conditions. Put bluntly, what one group of judges felt was the correct policy answer in 2009 should not bind another group of judges, even as little as five years later. (at [159]–[161])

Pause for reflection

The three-stage test or approach *Caparo* stands for has, for some time now, been a matter of some controversy. Lord Bridge's 'unwisely aphoristic'¹⁶ statement in *Caparo*—requiring (1) *reasonable foreseeability* of harm; (2) a relationship of *proximity* between claimant and defendant; and (3) the recognition that the imposition of a duty of care would be *fair, just and reasonable*—was commonly thought to set down a new test to determine when a duty of care is owed in so-called novel cases. It does not. And you should certainly resist the temptation to apply this as a stand-alone test for the existence of a duty of care in negligence.

However, the main difficulty with the three-stage formulation, and indeed *Caparo* itself, is that it tells us remarkably little about when a duty of care will arise or even how courts should go about determining when such duties arise. Yet this is the very thing a general test for establishing duties of care should do. However, what is striking when one reads the judgments in *Caparo* is that the House of Lords made clear that it was *not* intending to set down a test that could be used by courts in future cases to provide concrete answers to whether a duty of care arose on a given set of facts. On the contrary, the House of Lords in *Caparo* clearly took the view that it was impossible to find *any* single test which, in practice, could be used to identify those situations in which a duty of care will be owed. Lord Oliver put it thus:

I think that it has to be recognised that to search for any single formula which will serve as a general test of liability is to pursue a will-o'-the-wisp. The fact is that once one discards, as it is now clear one must, the concept of foreseeability of harm as the single exclusive test, even a *prima facie* test, of the existence of the duty of care, the attempt to state some general principle which will determine liability in an infinite variety of circumstances serves not to clarify the law but merely to bedevil its development in a way which corresponds with practicality and common sense. (at 632)

Moreover, not only did the House of Lords reject the possibility of formulating any single, practicable test, they also went on to deny the utility of the very concepts of 'proximity' and 'fairness, justice and reasonableness' that are employed in the so-called three-stage test:

[T]he concepts of proximity and fairness embodied in these additional ingredients are not susceptible of any such precise definition as would be necessary to give them utility as practical tests, but amount in effect to little more than convenient labels to attach to the features of different specific situations in which, on a detailed examination of all the circumstances, the law recognises pragmatically as giving rise to a duty of a given scope. (Lord Bridge at 618)

Lord Oliver said something similar:

Indeed it is difficult to resist a conclusion that what have been treated as three separate requirements are, at least in most cases, in fact merely facets of the same thing, for in some cases the degree of foreseeability is such that it is from that alone that the requisite proximity can be deduced, whilst in others the absence of that essential relationship can most rationally be attributed simply to the court's view that it would not be fair and reasonable to hold the defendant responsible. 'Proximity' is, no doubt, a convenient expression so long as it is realised that it is no more than a label which embraces not a definable concept but merely a description of circumstances from which, pragmatically, the courts conclude that a duty of care exists. (at 633)

Accordingly, though many lawyers, judges—and tort textbook writers—came to view *Caparo* as setting down a new test which they must apply when working out when duties of care arise, this was not just a misreading of the judgments in *Caparo* but indeed the very opposite of what the court had intended.

More recently, the Supreme Court has sought to resurrect and restate the true message of *Caparo*. The point was emphasised by Lord Toulson in *Michael v Chief Constable of Wales* [2015] when he noted that '[p]aradoxically, ... Lord Bridge's speech has sometimes come to be treated as a blueprint for deciding cases, despite the pains which the author took to make clear that it was not intended to be any such thing' (at [106]). And again in *Robinson v Chief Constable of West Yorkshire* [2018] where Lord Reed noted:

The proposition that there is a *Caparo* test which applies to all claims in the modern law of negligence, and that in consequence the court will only impose a duty of care where it considers it fair, just and reasonable to do so on the particular facts, is mistaken. As Lord Toulson JSC pointed out in his landmark judgment in *Michael v Chief Constable of Wales* [2015] ... that understanding of the case mistakes the whole point of the *Caparo* case, which was to repudiate the idea that there is a single test which can be applied in all cases in order to determine whether a duty of care exists, and instead to adopt an approach based, in the manner characteristic of the common law, on precedent, and on the development of the law incrementally and by analogy with established authorities. (at [21])

Tests—three-staged or otherwise—aside, one thing *Caparo* does is to change the starting point from which decisions on whether the defendant owes the claimant a duty to take reasonable care not to cause them injury are made. For Lord Wilberforce in *Anns*, showing that it was reasonably foreseeable that the defendant's carelessness would harm the claimant was enough to establish a 'prima facie' duty of care. As we have seen, this effectively adopted a presumption that where harm was reasonably foreseeable, a duty of care would be owed. Of course, this presumption could be rebutted. Accordingly, the second stage of the *Anns* test asked whether there were policy considerations which nonetheless required the court to deny a duty of care. But this way of structuring the inquiry was significant. The test suggested that, all else being equal, a duty of care would be owed wherever it was reasonably foreseeable that the defendant's carelessness could harm the

claimant and it was only in those (apparently) exceptional cases where policy considerations pointing *against* the imposition of a duty were sufficiently weighty, that a duty of care would nonetheless be denied. *Caparo* rejects this view. Instead the court must weigh up all the applicable reasons and arguments for and against recognising a duty of care. A duty of care will be found only if the court considers that, on balance, the combined reasons in favour of a duty of care are stronger than the combined reasons against, with no presumption that a duty will be owed when harm is foreseeable.

Pause for reflection

As we have noted, the House of Lords in *Caparo* was determined to effect a shift away from the position of *Donoghue* and *Anns* whereby foreseeability of damage was enough to raise a prima facie duty of care, which would be negated only if there were public policy considerations which militated against such a duty. Do you think this shift has gone too far? After all, as Lord Browne-Wilkinson reminded us, in *X (Minors) v Bedfordshire County Council*, we should not lose sight of the compensatory purposes of the tort of negligence:

the public policy consideration which has first claim on the loyalty of the law is that wrongs should be remedied and that very potent counter-considerations are required to override that policy. (at 749)

Lord Dyson, in *Jones v Kaney* [2011], made a similar point:

The general rule that where there is a wrong there should be a remedy is a cornerstone of any system of justice. To deny a remedy to the victim of a wrong should always be regarded as exceptional. As has been frequently stated, any justification must be necessary and requires strict and cogent justification ... If the position were otherwise, the law would be irrational and unfair and public confidence in it would be undermined. (at [113])

Think about *Caparo* and the cases that have followed it (discussed in the following chapters). Are the courts now paying too little attention to the principle that carelessly caused injuries should be compensated?

3.2.3 *Robinson* and the incremental approach

While the Supreme Court in *Robinson* is clear that we should not think of *Caparo* as setting down a test which can tell us when duties of care are owed, what does *Caparo* have to say to courts faced with novel cases, when the existing precedents do not give an answer to the question of whether a duty of care is owed?

The principal steer *Caparo* gives to the courts came in its approval of a dictum of Brennan J in the Australian case of *Sutherland Shire Council v Heyman* [1985]: ‘It is preferable, in my view, that the law should develop novel categories of negligence incrementally and by analogy with established categories’ (at 481). This describes what has become known as the incremental approach. According to this approach, the courts should identify duties of care not by seeking a high-level, universal test of the kind the House of Lords attempted to formulate in *Donoghue* and *Anns*. Rather, their focus should be on the existing case law and the factual circumstances in which duties of care have already been found, and to work outwards from them. As Lord Bridge noted, this heralds a return to the pre-*Donoghue* approach and ‘the more traditional categorisation of distinct and recognisable situations as guides to the existence, the scope and the limits of the varied duties of care which the law imposes’ (*Caparo* at 618).

Pause for reflection

The suggestion that we should recognise duties of care in situations identical or analogous to those where the courts have recognised a duty of care previously (and that we should reject duties of care in situations where the courts have previously denied their existence) is clearly sensible and is hardly revolutionary. This is, one might say, just ordinary common law reasoning. The problem with this approach is what might be thought to be its implication: that, where no analogy can be found—that is, where there is no previously decided case analogous to the case at hand—a duty of care will be denied since the recognition of a duty of care cannot be understood as an incremental development of the law from existing, analogous authorities. In other words, if the law is to develop incrementally, we can *only* recognise duties of care in situations analogous to those where a duty of care has *already* been recognised.

But, if this is true, it then means that the outcome of cases depends not upon legal principle and the substantive merits of the case but upon the accidents of legal history—that is, on whether you are fortunate enough that an analogous case has already been decided by the courts. If we take the incremental approach seriously, where a party is unfortunate enough to suffer an injury in a truly novel way, so that no case similar to theirs has been brought to court before, then their claim will fail not because it is unmeritorious but for the simple (and highly unsatisfactory) reason that they are the first person to bring such a claim. Indeed, it is just this type of arbitrary and unfair result that the majority of the House of Lords in *Donoghue* rejected. The incremental approach appears to invite us to say that the minority in that case were right after all.¹⁷

Perhaps unsurprisingly, in the years following *Caparo* the courts showed little enthusiasm for this approach, or at least the implication that *really* novel cases will lose out by reason of their novelty alone. For instance, in *Marc Rich & Co v Bishop Rock Marine Co Ltd* [1996] (also known as *The Nicholas H*) the House of Lords, faced with a novel type of negligence claim, effectively sidelined the incremental by analogy approach on the basis that, if there had been no analogous cases previously decided, then the past cases could offer no guidance

either way as to whether a duty should be held to exist. Instead, the court decided the case pragmatically by analysing the reasons for and against the recognition of a duty and deciding whether on balance a duty ought to be recognised (albeit while using the language of fairness, justice and reasonableness).

p. 69 ↵ More recently, however, the Supreme Court has endorsed what might be considered a refined version of the incremental approach. In *Robinson v Chief Constable of West Yorkshire Police*, Lord Reed held that it was the incremental approach, not the supposed three-stage test, which *Caparo* should be understood to stand for and it is this approach which courts should employ when dealing with novel claims (at [25]). But, in so doing, he did not endorse what we described as the apparent implication of this approach: that truly novel claims fail simply by reason of their novelty. Rather he stated that ‘the drawing of an analogy depends on identifying the legally significant features of the situations with which the earlier authorities were concerned’ (at [27]). He continued:

Properly understood, the *Caparo* case ... achieves a balance between legal certainty and justice. In the ordinary run of cases, courts consider what has been decided previously and follow the precedents (unless it is necessary to consider whether the precedents should be departed from). In cases where the question whether a duty of care arises has not previously been decided, the courts will consider the closest analogies in the existing law, with a view to maintaining the coherence of the law and the avoidance of inappropriate distinctions. They will also weigh up the reasons for and against imposing liability, in order to decide whether the existence of a duty of care would be just and reasonable. (at [29])

The clear suggestion here, then, is that even truly novel cases are to be decided on their merits, and the incremental approach is not a direction to courts to treat novelty alone as a basis for denying duties of care. On the contrary, courts faced with novel claims still have, in the end, to make a judgement of justness and reasonableness. But this judgement is to be made not by straight appeal to high principle but via a consideration of whatever analogous cases we can find (remembering that analogy is a matter of degree) and the more fact-specific considerations these cases identify.

In this way, *Robinson* seeks to reassert the true message of *Caparo*. Lord Reed reiterated this point in the later case of *Poole Borough Council v GN* [2019]:

Robinson did not lay down any new principle of law ... the decision explained, as *Michael* had previously done, that *Caparo* did not impose a universal tripartite test for the existence of a duty of care, but recommended an incremental approach to novel situations, based on the use of established categories of liability as guides, by analogy, to the existence and scope of a duty of care in cases which fall outside them. The question whether the imposition of a duty of care would be fair, just and reasonable forms part of the assessment of whether such an incremental step ought to be taken. (at [64])¹⁸

But *Robinson* also emphasises *Caparo*'s limited role. As Lord Reed makes clear, if there is a previous decision which does cover the case at hand, then the court can say whether or not there is a duty of care by direct appeal to the precedent and so without any need to have recourse to *Caparo*. Indeed, one of the important messages of *Robinson* is that courts not only do not *need* to resort to *Caparo* when a case falls within an established duty situation; *they should not do so*. This was true in *Robinson* itself.

p. 70

***Robinson v Chief Constable of West Yorkshire* [2018] UKSC 4 (SC)**

The claimant, an elderly woman, was knocked to the ground and injured when two police officers attempted to arrest a suspected drug dealer. Her claim was dismissed at trial on the basis that the police had an immunity against claims in negligence. The Court of Appeal rejected her appeal on the grounds that the police generally owe no duty of care to members of the public and that, on the facts, there was no proximity between the parties and it would not be fair, just and reasonable to impose such a duty. The Supreme Court allowed the claimant's appeal, holding that the defendants both owed and breached a duty of care to the claimant. Lord Reed gave the lead judgment:

Applying the approach adopted in the *Caparo* case, there are many situations in which it has been clearly established that a duty of care is or is not owed: for example, by motorists to other road users, by manufacturers to consumers, by employers to their employees, and by doctors to their patients. As Lord Browne-Wilkinson explained in *Barrett v Enfield London Borough Council* [2001] 2 AC 550:

Once the decision is taken that, say, company auditors though liable to shareholders for negligent auditing are not liable to those proposing to invest in the company ... that decision will apply to all future cases of the same kind. (at 559–60)

Where the existence or non-existence of a duty of care has been established, a consideration of justice and reasonableness forms part of the basis on which the law has arrived at the relevant principles. It is therefore unnecessary and inappropriate to reconsider whether the existence of the duty is fair, just and reasonable (subject to the possibility that this court may be invited to depart from an established line of authority). Nor, a fortiori, can justice and reasonableness constitute a basis for discarding established principles and deciding each case according to what the court may regard as its broader merits. Such an approach would be a recipe for inconsistency and uncertainty. (at [26])

On this basis, one of the principles of negligence law, clearly established through the case law, is that we all owe each other duties of care not to cause one another foreseeable physical harm through our positive acts. This was the position that the defendant police officers found themselves in: it was reasonably foreseeable that, if they did not take reasonable care, in conducting their arrest, others in

the vicinity might end up being physically harmed. Accordingly, it was, the court concluded, clear as a matter of precedent that they owed a duty of care and it was wrong for the Court of Appeal to ask whether it would be fair, just and reasonable to impose such a duty.

Test your understanding by trying this section's self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-3-2>.

3.3 Where does this leave us? (Or when to use *Caparo*)

Without doubt, there are times when establishing a duty of care in negligence can be hard to do. As Lord Reed has pointed out, for years judges—even at the very highest level of our courts—have been doing it wrong.

p. 71 ↩ First it is important to remember that ultimately it is only a small minority of cases—where the courts are asked to determine whether new categories of claim should be recognised or existing precedents should be revised or extended—which call for the application of a general test or approach such as those propounded in *Donoghue*, *Anns* and *Caparo*. As such, the practical need for some such test is not great and the number of cases in which the courts must struggle through without the guidance of such a test are few.

However, in such cases we at least now have some clarity. When determining if a duty of care is owed, the first place to look is to the decided cases. If they establish that a duty of care is, or is not, owed, then we have our answer, and the question of whether recognising such a duty would be fair, just and reasonable does not need to be asked and answered again. Even where the precedents provide no conclusive answer as to whether a duty of care is owed, they may nonetheless provide more concrete guidance than we get from *Caparo*. So, for example, if the claimant suffers pure psychiatric injury, the courts will look to cases such as *Alcock v Chief Constable of South Yorkshire Police* [1992], *Page v Smith* [1996] and *Paul v Royal Wolverhampton NHS Trust*; *Polmear v Royal Cornwall Hospital NHS Trust*; *Purchase v Ahmed* [2024], rather than *Caparo*, to answer the duty of care question. Similarly, in cases concerning pure economic loss, the courts have developed more concrete principles to help establish when duties of care are owed. Furthermore, as *Robinson* shows, where personal injuries, and possibly property damage, are concerned, it will generally be the case that foreseeability of such injury will suffice to establish a duty; in other words, the test set down in *Donoghue* will be used (although there are exceptions to this—see e.g. *Marc Rich & Co v Bishop Rock Marine Co Ltd* [1996]).

Only where and to the extent that the precedents do not provide an answer does the court need to consider the fairness and reasonableness of recognising a duty of care. In doing this—and this is the key idea of the incremental approach outlined in *Caparo* and endorsed in *Robinson*—the court must still focus on the decided cases to ensure that the law develops coherently and consistently. In so doing, while the approach put

forward in *Caparo* does not itself determine when duties of care are owed in novel cases—this is something the judges faced with such cases must decide for themselves—what it *does* do is provide a general steer when judges are making these decisions; a steer broadly as outlined in **Decision Tree 3.1** at the end of this chapter.

Watch our video ‘Pursuing a will-o’-the wisp: Hinkypunks, Pokémon and *Caparo*’ where we explore the ongoing importance of *Caparo* on how courts establish a duty of care.

Video playback is not supported in this format.

Video 3: Pursuing a will-o’-the wisp: Hinkypunks, Pokémon and *Caparo*

That said, while, as the Supreme Court stressed in *Robinson*, it is only in novel duty situations that courts must adopt the incremental approach endorsed in *Caparo* (in established duty situations, by contrast, the existence of a duty of care is already settled by statute or by precedent), it is not always easy to determine whether a case falls within an established duty situation or is indeed novel. Take, for example, *Darnley v Croydon Health Services NHS Trust* [2018]. The claimant went to hospital with a serious head injury and was incorrectly told by a receptionist that he would have to wait four to five hours for treatment. Rather than wait for treatment, he returned home where his condition deteriorated. By the time he returned to hospital, it was too late to save him from permanent brain damage. In the Court of Appeal, the case was seen as raising a novel duty question: do hospital receptionists owe a duty of care to patients concerning waiting times. The court concluded, by majority, that it would not be fair, just and reasonable for them to do so. On appeal, however, the Supreme Court considered that this was not a novel duty case at all. In Lord Lloyd-Jones’s view:

To my mind, ... the present case falls squarely within an established category of duty of care. It has long been established that such a duty is owed by those who provide and run a casualty

department to persons presenting themselves complaining of illness or injury and before they are treated or received into care in the hospital’s wards. The duty is one to take reasonable care not to cause physical injury to the patient ... In the present case, as soon as the claimant had attended at the defendant’s A & E department seeking medical attention for the injury he had sustained, had provided the information requested by the receptionist and had been ‘booked in’, he was accepted into the system and entered into a relationship with the defendant of patient and health care provider. The damage complained of is physical injury and not economic loss. This is a distinct and recognisable situation in which the law imposes a duty of care. Moreover, the scope of the duty to take reasonable care not to act in such a way as foreseeably to cause such a patient to sustain physical injury clearly extends to a duty to take reasonable care not to provide misleading information which may foreseeably cause physical injury. While it is correct that no authority has been cited in these proceedings which deals specifically with misleading information provided by a receptionist in an A & E department causing physical injury, it is not necessary to address, in every instance where the precise factual situation has not previously been the subject of a reported judicial decision, whether it would be fair, just and reasonable to impose a duty of care. It is sufficient that the case falls within an established category in which the law imposes a duty of care. (at [16])

p. 72

You may find it helpful to look at this annotated version of *Darnley* <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-annotated-judgment-darnley>>.

If even the judges can't agree, it is little wonder that the incremental approach and by analogy approach have been dismissed by some academics as 'thoroughly banal':

The law on duty of care develops by analogy with decided cases. Of course it does: in the same way as the rest of the common law. The observation seems thoroughly banal. Yet the courts think it meaningful ... In Lord Reed's view [in *Robinson*] *Caparo*'s 'whole point' was to re-establish 'an approach based, in the manner characteristic of the common law, on precedent'.¹⁹

Let's take *Donoghue v Stevenson* as an example. What is the duty situation that case established? The case itself concerned a manufacturer of ginger beer in the Scottish city of Paisley. However, no one would say that the duty category it supports applies only to bottles of ginger beer or is limited only to those producing drinks in Paisley. The same rule would apply if the court was then faced with a claim by someone who had found a slug in a bottle of lemonade in Glasgow. But how do we know this? One way is by looking at the judgments given in the case. That it was ginger beer—rather than, say, lemonade—and that the bottle was produced in Paisley—rather than, say, Glasgow—were not considerations which had any bearing on the decision and find no expression in the reasoning of the court. These, however, are easy examples. Does the *Donoghue* category extend beyond ginger beer and other drinks to food? Almost certainly. What about other potentially dangerous items? What about activities other than the provision of dangerous products? Does it extend, say, to dangerous *advice*? While none of these questions was addressed directly in *Donoghue*, we might nonetheless say that they were by implication. Indeed, this was the key thrust of the neighbourhood principle: whenever you are doing something which poses a reasonably foreseeable risk of harm, *whatever that activity is*, you must take reasonable care.

p. 73 ↵ Of course, this is precisely why the courts have rowed back on the neighbourhood principle: it goes too far. Nonetheless something like this process of generalisation—from the facts and decision in any given case to the broader rule or principle it stands for—is required every time we have to work out what range of cases is covered by a particular precedent or line of precedents. This then shows that, while the courts may say that they have 'abandoned the search for a general principle capable of providing a practical test applicable in every situation to determine whether a duty of care is owed' (*Darnley* at [15]), even the incremental approach depends on drawing generalisations from individual cases, indeed the sort of generalisation which *Donoghue* endorsed. Moreover, it also suggests why lower courts—told that there is no general principle to be found but also to look out for 'established' (and general) duty categories—might find their task rather difficult.

Pause for reflection

Is this really the best we can do? What should we be looking for in a test, or broader approach, for establishing duties of care? Why, it might be asked, do we need the duty of care at all? Is the criticism of some of these cases directed to the content of the actual decisions or simply to the language that

the courts have been using to explain their decisions? These are some of the questions you should be thinking about as you read the chapters that follow (which discuss situations where the law either denies a duty of care outright or makes establishing such a duty more onerous) and as you begin to learn more about duty and the tort of negligence as a whole.

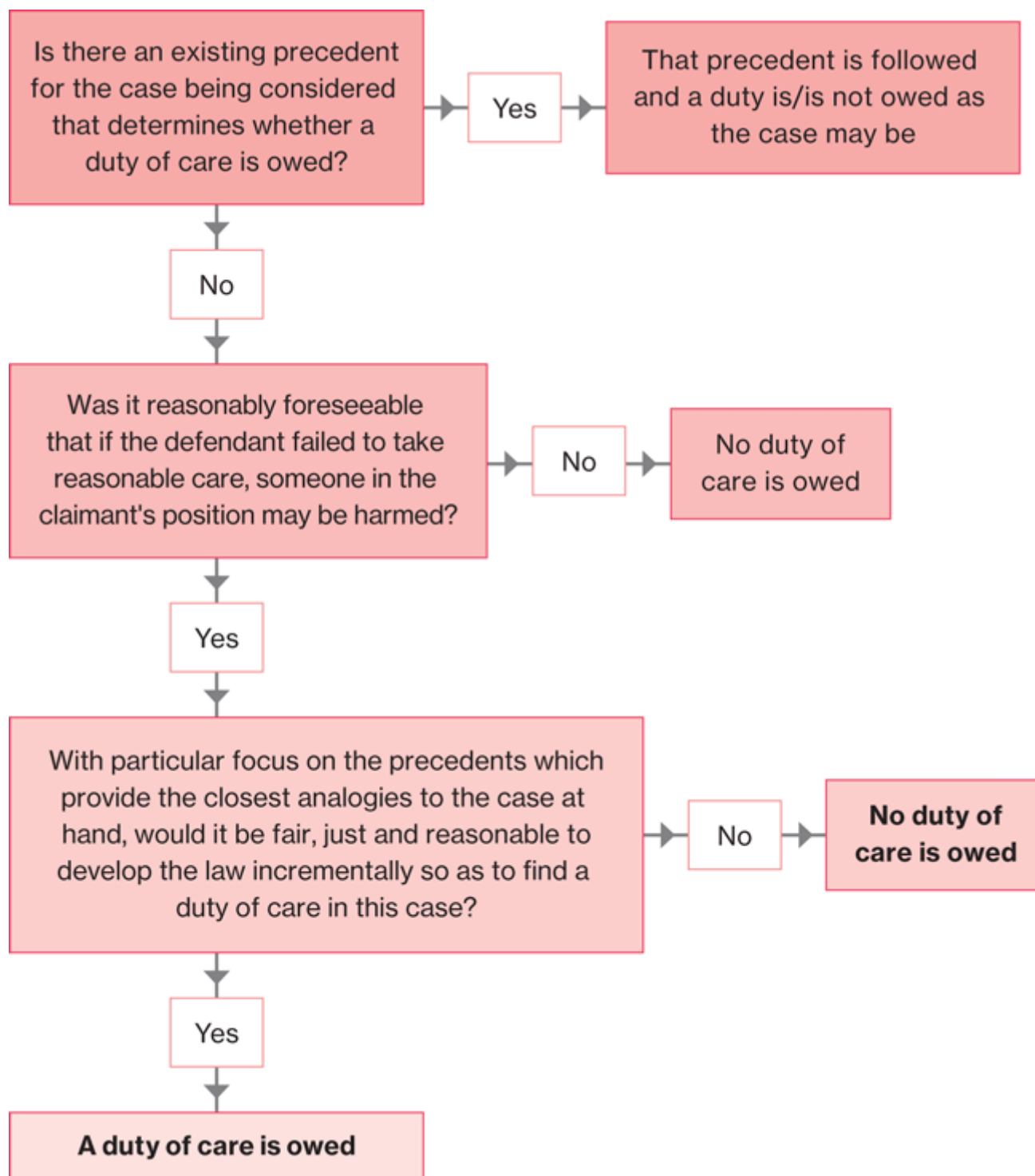
Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-3-3>>.

3.4 Conclusion

In this chapter, we have looked at the concept of *duty* in negligence claims. We have considered attempts by the courts to establish general 'tests' through which to establish when a duty of care is owed. We concluded by noting that, though we should not downplay the significance of these general tests, they are used in a small minority of cases where the judges are being asked to develop a new area of the law. Thus, over the course of the next four chapters we shall consider the circumstances in which the courts have developed specific rules in order to establish when a duty of care is owed.

Decision Tree 3.1 sets out the basic considerations for establishing a duty of care in new cases.

Explore this process using the interactive version of this decision tree <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-3-interactive-decision-tree-3-1>>.



Decision Tree 3.1 Establishing a duty of care in new cases

End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 What purpose does the concept of duty of care serve? Why shouldn't everyone who falls below the standard of care of the reasonable person be liable if they injure someone?

3. Duty of care: Basic principles

- 2 In what situations is the issue of whether or not there is a duty of care unproblematic and when is it problematic? Why is this?
- 3 In each of the following situations consider both whether there *is* a legal duty of care and whether there *should* be:
- (i) Ethel, an elderly woman, lives alone in an isolated farmhouse. Recently there have been a number of burglaries in the neighbourhood so she decides to protect herself by digging a hole beneath her front window, which she then covers with leaves. Unfortunately, Ahoeitu, a postman, falls down this hole while looking through the window to see if Ethel is in to collect a parcel.
- p. 75 (ii) ↵ Ms Majick is a well-known magician. One night while performing their signature trick, which involves ‘cutting’ their assistant, Dominik, in half, they accidentally slice into his side causing him to bleed heavily. On seeing this, Dominik’s new boyfriend, Sandro, who is in the audience, faints and falls and hits his head—he suffers severe concussion.
- 4 ‘[T]he postulate of a simple duty to avoid any harm, that is, with hindsight, reasonably capable of being foreseen becomes untenable without the imposition of some intelligible limits to keep the law of negligence within the bounds of common sense and practicability’ (Lord Oliver, **Caparo** at 633). How have the courts sought to place limits upon the duty of care owed in negligence and to what extent do you consider that such limits are ‘intelligible’?

If you would like to know what we think, check the **answer guidance** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-3-answers-to-end-of-chapter-questions?options=showName>>.

Further reading

Much of the writing in this area focuses on the role of duty as an ingredient in the tort of negligence and asks the ‘big questions’ such as: ‘Do duties of care exist?’ ‘If so, how many are there?’ ‘Do we need the concept of a duty of care?’ and so on. The best place to start is with Nicholas McBride’s discussion of the ‘idealist’ and ‘cynical’ views of negligence and Jonathan Morgan’s excellent discussion of the key debates when ‘Defining the Duty of Care’ in his *Great Debates in Tort Law*.

Cane, Peter and James Goudkamp *Atiyah’s Accidents, Compensation and the Law* (9th edn CUP 2018) ch 3

Hepple, Bob ‘Negligence: The Search for Coherence’ (1997) 50 *Current Legal Problems* 69

Howarth, David ‘Many Duties of Care—Or A Duty of Care? Notes from the Underground’ (2006) 26 *Oxford Journal of Legal Studies* 449

McBride, Nicholas ‘Duties of Care—Do They Really Exist?’ (2004) 24 *Oxford Journal of Legal Studies* 417

Morgan, Jonathan *Great Debates in Tort Law* (Hart 2022) chs 6 and 7

3. Duty of care: Basic principles

Morgan, Jonathan 'The Outer Limits of "Personal Injury"' [2018] Cambridge Law Journal 461 (on *Dryden*)

Steele, Jenny 'Duty of Care and Ethic of Care: Irreconcilable Difference?' in Janice Richardson and Erika Rackley (eds) *Feminist Perspectives on Tort Law* (Routledge 2012) 14–35

Tofaris, Stelios, 'Duty of Care in Negligence: A Return to Orthodoxy?' [2018] Cambridge Law Journal 454 (on **Robinson**)

Witting, Christian 'Duty of Care: An Analytical Approach' (2005) 25 Oxford Journal of Legal Studies 33

Additional suggestions for further reading can be found in this chapter's **web links**. <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-3-web-links?options=showName>>.

Notes

¹ See **Chapter 8**.

² Peter Cane and James Goudkamp *Atiyah's Accidents, Compensation and the Law* (9th edn CUP 2018) 60.

³ See further Nicky Priaulx 'Endgame: On Negligence and Reparation for Harm' in Janice Richardson and Erika Rackley (eds) *Feminist Perspectives on Tort Law* (Routledge 2012) 36–54.

⁴ See e.g. in relation to economic losses and freedom of speech, Robert Stevens *Torts and Rights* (OUP 2007) 21 and also **section 2.1**.

⁵ This is not to say that an examiner is not under a duty of care to mark papers *fairly* or *accurately*—i.e. to give better papers better marks. It is also probably the case that teachers owe a duty of care to teach students adequately so as to enable them to pass the exam in the first place (*Siddiqui v University of Oxford* [2018]). The point is rather that when an examiner gives a bad paper a bad mark, they are, consciously, leaving that student worse off than if they had awarded a higher mark. Nonetheless, as long as the mark is fair, no liability will attach since there is no duty to avoid causing such harm.

⁶ Cane and Goudkamp **n2** 60–1. See also Donal Nolan 'Deconstructing the Duty of Care' (2013) 129 *Law Quarterly Review* 559.

⁷ Nicholas McBride 'Duties of Care—Do They Really Exist?' (2004) 24 *Oxford Journal of Legal Studies* 417, 418–19.

⁸ Joanne Conaghan and Wade Mansell *The Wrongs of Tort* (2nd edn Pluto Press) 13.

⁹ See further David Howarth 'Many Duties of Care—Or A Duty of Care? Notes from the Underground' (2006) 26 *Oxford Journal of Legal Studies* 449, 457–63.

¹⁰ See **section 7.4**.

¹¹ Conaghan and Mansell **n8** 17, 20. See also Cane and Goudkamp **n2** ch 8.

¹² The facts of **Caparo**, which concerned economic loss following reliance on information provided by auditors, are discussed in detail in **Chapter 7**. They are not relevant here.

¹³ Alistair Mullis and Ken Oliphant *Tort* (4th edn Palgrave Macmillan 2011) 22.

3. Duty of care: Basic principles

- ¹⁴ See e.g. the so-called **Alcock** control mechanisms which limit duty of care in relation to psychiatric injuries suffered by 'secondary victims' discussed in **section 5.6**.
- ¹⁵ Christian Witting 'Duty of Care: An Analytical Approach' (2005) 25 Oxford Journal of Legal Studies 33, 62.
- ¹⁶ Jonathan Morgan *Great Debates in Tort Law* (Hart 2022) 155.
- ¹⁷ See **section 2.2**.
- ¹⁸ For an example of this approach in action, see *James-Brown and others v Commissioner of Police for the Metropolis* [2018].
- ¹⁹ Morgan **n16** 177, 181.

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